

Trust may be proved against defendant's denial. — And should the nominal purchaser *deny* the trust by his answer the solemnity of the defendant's oath will of course require a considerable weight of evidence to overcome its impression (*f*).

12. Of written evidence after the death of the nominal purchaser. — It is laid down by Mr. Sanders, that "if a person at his death leave any papers disclosing the real circumstances of the case, the Court will raise the trust even against the express declaration of the purchase-deed" (*g*). We have seen that, according to the latest authorities, parol evidence is in ordinary cases admissible against the language of the purchase-deed; but if Mr. Sanders's opinion to the contrary were well founded, it does not appear how mere papers would satisfy the requisitions of the statute; for, to have that effect, the writings ought also to be *signed* by the party. The cases of *Ryall v. Ryall* (*h*) and *Lane v. Dighton* (*i*), which are cited for the position, do not at all turn upon the distinction suggested.

13. Of parol evidence after the death of the nominal purchaser. — It is observed by the same writer, that, "*after the death of the supposed nominal purchaser*, parol proof alone can in no instance be admitted against the express declaration of the *deed" (*a*); but the cases relied upon in support of this doctrine (*b*) do not distinguish between proofs in a person's lifetime and after his decease; they are certainly authorities for the exclusion of parol evidence universally, but in this respect, as before noticed, they have been subsequently overruled. It would seem upon principle, that the death of the nominal purchaser cannot affect the *admissibility* of parol testimony, whatever effect it may have in detracting from its *weight*.

Lord Hardwicke; and see *Lench v. Lench*, 10 Ves. 518; *Wilkins v. Stevens*, 1 Y. & C. C. C. 431.

(*f*) See *Cooth v. Jackson*, 6 Ves. 39.

(*g*) *Uses and Trusts*, c. 3, s. 7, div. 2.

(*h*) Amb. 413.

(*i*) Amb. 409.

(*a*) *Uses and Trusts*, c. 3, s. 7, div. 2.

(*b*) *Kirk v. Webb*, Pr. Ch. 84; *S. C. Freem.* 229; *Heron v. Heron*, Pr. Ch. 133; *Halcott v. Markant*, Id. 168; *Kinder v. Miller*, Id. 172; *S. C. 2 Vern.* 440; *Deg v. Deg*, 2 P. W. 414, *per* Lord King.